

1.

CASE #	CASE NAME	HEARING NAME
CVRI2301029	FREEDOM MORTGAGE CORPORATION vs ROSS	MOTION TO AMEND JUDGMENT

Tentative Ruling:

Motion granted. Proposed Judgment submitted has been signed and ordered filed. Moving party to provide notice to all parties.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403763	HERNANDEZ vs BEAUTY ON A BUDGET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Moving party: Defendants Issam J. Rafeedie and Lydia Rafeedie
Responding party: Plaintiff Hortencia Duarte Hernandez

Plaintiff Hortencia Duarte Hernandez initiated this personal injury action on June 28, 2024 against Defendants Beauty on a Burdge ("Beauty"), Issam J. Rafeedie and Lydia L. Rafeedie (collectively, the "Rafeedies"). The Form Complaint alleges that on January 15, 2024, Plaintiff was at Beauty located in Riverside (the "Premises"), walking towards the restroom when "she stepped on unmarked and/or unsecure wires, cables and/or similar objects causing her to trip and fall, thereby causing Plaintiff to endure severe injury and pain" (the "Incident"). (Compl., pg. 6.) The Complaint further alleges Defendants had exclusive control of Beauty and negligently owned, maintained, managed, and operated the Premises and failed to warn of the dangerous condition. The Complaint asserts causes of action for (1) general negligence and (2) premises liability.

Trial is not currently set.

The Rafeedies now move for summary judgment or, in the alternative, summary adjudication of Plaintiff's Complaint on the grounds: (1) they do not owe Plaintiff a duty because they do not control the interior of the Premises where the Incident occurred; (2) their actions were not a substantial factor in causing Plaintiff's injuries; and (3) Plaintiff tripped over a hairdryer cord that belongs to third party Teresa Robles (Robles), which was the independent intervening force breaking the chain of causation.

In opposition, Plaintiff maintains the Rafeedies have a nondelegable duty to maintain the Premises in a reasonably safe condition because they have control of the

Premises as owners and lessors. Plaintiff argues the Rafeedies had constructive notice of the dangerous condition, and that triable issues of material fact exist.

In reply, the Rafeedies generally repeat their arguments in moving papers.

Analysis

I. Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

II. The Rafeedies' Request for Judicial Notice ("RJN")

The Court **DENIES** the RJN as to Exhibit A, Plaintiff's Complaint, as unnecessary because the Court has authority to look through its own file. (See *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11 [judicial notice of document included in appellate record is unnecessary].)

III. Plaintiff's Evidentiary Objections

Plaintiff objects and moves to strike various portions of the separate declarations submitted by the Rafeedies on the grounds of misstates evidence, secondary evidence rule, hearsay, lacks personal knowledge, improper legal conclusion, lacks foundation, relevance, and improper opinion. The Court **SUSTAINS** objections 3 and 8 as lacks personal knowledge as phrased and **OVERRULE** the remainder of the objections as meritless.

IV. Plaintiff's Opposition to the Rafeedies' Separate Statement

Plaintiff disputes a number of the Rafeedies' Undisputed Facts ("UF"). However, many of these disputes are not true disputes because they are either consistent with the Rafeedies' evidence or the evidence Plaintiff provides does not dispute the UF.

For example, UF #3 for the MSJ portion states, "Plaintiff's Complaint alleges that, as she was 'walking towards the restroom within the subject premises, she stepped on unmarked and/or unsecured wires, cables and/or similar objects causing her to trip and fall." Plaintiff disputed this UF as incomplete and copies and pastes the entire narrative found on page 6 of the Complaint. Plaintiff does the same with UF #4, 5, 6, 10, 11. Plaintiff repeats this same pattern for a number of the UF under each MSA issue. The cited evidence does not actually contradict the UF in dispute.

"The opposing party's responses to the separate statement must be in good faith, responsive and material. Responses should directly address the fact stated, and if that fact is not in dispute, **the opposing party must so admit**. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 875-876.) "Courts should...not hesitate to disregard attempts to game the system by the opposing party claiming facts are 'disputed' when the uncontroverted evidence clearly shows otherwise." (*Id.* at 876.)

Accordingly, analysis on the merits is done by reliance on the evidence in support of the UF to determine if there truly is a factual dispute.

V. Merits

Plaintiff's Complaint contains two causes of action that are premised upon the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant's legal duty of care toward plaintiff, (2) defendant's breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid

exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

a. Issue 3: Duty

The Rafeedies argue that because they did not control the interior of the Premises, no duty exists, citing *Steinmetz v. Stockton City Chamber of Commerce* (1985) 169 Cal.App.3d 1142 and *Gray v. American West Airlines, Inc.* (1989) 209 Cal.App.3d 76. However, *Steinmetz* involved a death that occurred on a premises that was not owned, possessed, or controlled by the defendants and is thus distinguishable. (*Steinmetz, supra*, 169 Cal.App.3d at 1146-1147.)

In contrast, Plaintiff argues that as the property owners and lessors, the Rafeedies have a nondelegable duty to maintain their premises in a reasonably safe condition, citing *Schreiber v. Lee* (2020) 47 Cal.App.5th 745, 757-758. However, *Schreiber* addressed duty in the context of a landlord delegating his duty to an independent contractor to safely maintain the property and is thus distinguishable.

Here, it is undisputed that the Rafeedies own the property where Beauty is located but leased the property to Amber Lopez for the operation of Beauty salon. (UF #1, 9.) Moreover, the Commercial Lease provides that the lessee is to maintain the premises in a safe condition and be responsible for all repairs. (UF #10-11.)

The facts here are analogous to *Gray, supra*, 209 Cal.App.3d 76. In *Gray*, an airline customer who tripped over luggage negligently left unattended by an unknown third party near the ticket counter sued the airline and port district which operated the airport. (*Id.* at 76, 79-80.) The airline leased its ticket counter from the port district, the operator of the airport, and had no control over the independent contractor the port district employed to maintain the concourse area where plaintiff was injured. (*Id.* at 80.) Plaintiff presented the port district's discovery response asserting the airline was responsible for managing the ticket counter area. (*Id.*) Even liberally construing plaintiff's evidence, the appellate court found it was insufficient to impose a duty on the airline based on foreseeability of the type of accident involved. (*Id.* at 83, 85.) The court held the airline showed it lacked control over the port district's concourse, and plaintiff failed to rebut that showing. (*Id.* at 84.)

Here, it is undisputed that Plaintiff finished her hair appointment with third party Teresa Robles, the owner of Beauty, when she stood up from the salon chair and tripped over a hairdryer cord wrapped around the chair. (UF #8, 12-13; Plaintiff Undisputed Fact ["PUF"] #1-4, 19-20, 22.) Robles was using that hairdryer. (Kershaw Decl., Exh. C, "Plaintiff Depo", pgs. 22:16-23:24; 24:17-25:17; PUF #10.) The Rafeedies also present evidence that the lessee, Lopez, and Robles controlled the interior of the Beauty salon, not the Rafeedies. (Lydia Rafeedie Decl., ¶6; Issam J. Rafeedie Decl., ¶6.)

Indeed, Plaintiff presents evidence that Robles has been the “owner, manager, and a cosmetologist” at Beauty since 1993 and her duties include “performing cleaning.” (PUF #19, 20, 22; Plaintiff Appendix of Exhibits [“PAOE”], Exh. C., Robles Depo, pgs. 31:14-16; 33:8-11; 37:2-9.) Robles cleans and disinfects the shop after closing six days a week. (*Id.* at pg. 37:10-16.) Robles conducts inspections at Beauty. (*Id.* at pg. 133:14-18.)

Like the airline in *Gray*, the Rafeedies present evidence that they had no control over the interior of Beauty. Like *Gray*, the plaintiff here failed to rebut the Rafeedies’ showing of no control. If anything, Plaintiff’s presentation of Robles’s deposition transcript evinces only Robles had control of the interior of Beauty. Applying *Gray*, Plaintiff’s evidence is insufficient to impose a legal duty on the Rafeedies. The Court **GRANTS** the MSA as to Issue 3. Because issue 3 addresses whether a duty exists and is an element of negligence and premises liability that the Rafeedies have negated, Plaintiff’s causes of action fail for purposes of Issues 1 (negligence cause of action) and 2 (premises liability cause of action).

b. Causation

i. Substantial Factor

The Rafeedies argue that they were not a substantial factor in causing Plaintiff’s injuries.

“In order for a plaintiff to satisfy the causation element of a negligence cause of action, he or she must show the defendant’s act or omission was a substantial factor in bringing about the plaintiff’s harm...In other words, [the] plaintiff must show some substantial link or nexus between omission and injury.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1104.) To prevail on a claim for negligence or premises liability, the “injured plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it but failed to take reasonable steps to do so.” (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431.) “Because the owner is not the insurer of the visitor’s personal safety [citation], the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th at 1206; see *Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385 [“property owner must have actual or constructive knowledge of a dangerous condition before liability will be imposed”].)

Constructive knowledge exists when the dangerous condition was present long enough for a reasonably prudent person to have discovered it. (*Ortega, supra*, 26 Cal.4th at 1206-1207.) The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it.” (*Id.* at 1207.)

Plaintiff argues the Rafeedies’ failure to inspect the interior at Beauty constitutes constructive notice of the dangerous condition, citing *Ortega, supra*, 26 Cal.4th at 1212-1213. However, this is not the precise holding in *Ortega*. In *Ortega*, a supermarket

patron was injured when he slipped on a puddle of mud on the floor and sued the supermarket operator. (*Id.* at 1204.) The *Ortega* court specifically held that a plaintiff has the “burden of producing evidence that the dangerous condition existed for at least a sufficient time to support a finding that the defendant had constructive notice of the hazardous condition.” (*Id.* at 1212.) It further held that a plaintiff may still demonstrate a storekeeper had constructive notice of a dangerous condition by showing that the site had not been inspected *within a reasonable period of time* so that a person exercising due care would have discovered and corrected the hazard. (*Ibid*, emphasis added.)

Plaintiff fails to present evidence that the Rafeedies had actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition. Plaintiff argues the failure by the Rafeedies to do any inspection equates to actual or constructive knowledge. This is stretching the *Ortega* holding. Indeed, Plaintiff’s evidence demonstrates there was no time for the Rafeedies to have actual and or constructive notice of the dangerous condition. (See undisputed UF #13; Robles Depo, pg. 51:7-9, [“But the minute she got up, she -- she slipped and ended up in between the first station and the middle station directly behind me”] and 20-21 [“At the time, it happened really fast, so we didn’t -- we didn’t understand what happened”]; pg. 150: 12-17 [plaintiff got up from the chair and took one or two steps before she fell].) Applying *Ortega*, Plaintiff fails to present evidence that the Rafeedies were a substantial factor in causing Plaintiff’s injuries.

ii. Independent Intervening Force

A superseding cause is an independent event that intervenes in the chain of causation, producing harm of a kind and degree so far beyond the risk the original wrongdoer should have foreseen that the law deems it unfair to hold him responsible. (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 573.) “In order to be ‘independent’ the intervening cause must be ‘unforeseeable...an extraordinary and abnormal occurrence, which rises to the level of an exonerating, superseding causes.’” (*People v. Cervantes* (2001) 26 Cal.4th 860, 871.)

“The existence of an intervening act does not necessarily attenuate a defendant’s negligence. Rather, ‘the touchstone of the analysis is the foreseeability of that intervening conduct.’” (*Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 631.) The question of foreseeability must be determined from a reasonable standard such that if injury is likely to occur. (*Sakiyama v. AMF Bowling Centers, Inc.* (2003) 110 Cal.App.4th 398, 406.)

The Rafeedies argue Plaintiff’s injuries resulted from Robles’s conduct in wrapping the hairdryer cord around Plaintiff’s chair is a superseding cause for which the Rafeedies are not liable, citing *Suite v. Los Angeles Company* (1947) 79 Cal.App.2d 195. There, the plaintiff sustained injuries while riding as a passenger on when the bus suddenly stopped, throwing her to the floor. (*Id.* at 196.) The trial court found that the sole proximate cause of the accident was the negligence of a third party in turning an automobile without warning into the path of the bus, causing the operator to stop quickly to avoid a collision, which the Court of Appeal held is conclusive on appeal. (*Id.* at 200.) Because the trial court there weighed evidence at a bench trial (*id.* at 196), this case

cannot be applied here for summary judgment where the trial court cannot weigh evidence. (*Binder, supra*, 75 Cal.App.4th at 840 [It is improper for the court to weigh evidence on a motion for summary judgment or adjudication].)

Likewise, the Rafeedies' reliance on *Hayden v. Paramount Productions Inc.* (1939) 33 Cal.App.2d 287, 293 is inapplicable here because the court in *Hayden* found the plaintiff knew of the dangerous condition and deliberately moved toward the danger. The Rafeedies thus fail to present legal authority applicable to the facts of the instant case.

In opposition, Plaintiff again relies on *Ortega* and argues that because the Rafeedies had constructive knowledge of the dangerous condition, the injury was foreseeable, and the Rafeedies are liable. However, as discussed previously, Plaintiff misapplies *Ortega* and in fact presented evidence that there was no reasonable time for the Rafeedies to have notice of the dangerous condition.

Given the foregoing, a trial issue of material fact exists as to the existence of an independent intervening act.

The motion for summary judgment is **GRANTED**. Moving party is ordered to give notice of ruling within 10 days of this order. Defendants Issam and Lydia Rafeedie are ordered to submit a **proposed judgment in their favor within 30 days of this order**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501418	PATTERSON DENTAL SUPPLY, INC vs ZAREH	MOTION FOR ORDER FOR ATTORNEY'S FEES AND COSTS OF ENFORCING JUDGMENT

Tentative Ruling:

This motion is unopposed. Motion is granted. Proposed order granting motion has been signed and ordered filed with the Court. Moving party to give notice of ruling. Moving party to submit a proposed amended judgment within 30 days of this order. The matter is set for an OSC on 8/24/2026 regarding receipt of a proposed amended judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600575	CORTEZ vs ASBURY MANAGEMENT SERVICES, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant, Asbury Management Services, LLC ("Defendant")

Responding party: Plaintiff, Robert Cortez ("Plaintiff")